

BEFORE THE
FEDERAL MARITIME COMMISSION

)
GLOBAL KINGS LOGISTICS/)
KAMORDEEN A. GANIU,)
Complainant,)
)
v.)
) DOCKET NO. 26-09
MEDITERRANEAN SHIPPING COMPANY)
(USA) INC.,)
)
Respondent.)

_____)

COMPLAINANT'S REPLY TO RESPONDENT'S OPPOSITION TO MOTION FOR LEAVE TO AMEND COMPLAINT

Complainant Kamordeen A. Ganiu, individually and d/b/a Global Kings Logistics ("Complainant"), respectfully submits this reply to Respondent Mediterranean Shipping Company (USA) Inc.'s ("MSC USA" or "Respondent") Reply to Complainant's Motion for Leave to Amend Complaint (the "Opposition"), filed and served July 27, 2026. To the extent leave of the Presiding Officer is required to file this response, Complainant respectfully requests such leave for the limited, narrow purpose set forth below. *See* footnote 1.

I. Introduction

Respondent's Opposition identifies no cognizable ground for denying leave to amend. It cites no rule, regulation, or precedent of any kind. It does not argue futility, undue prejudice, bad faith, undue delay, or that joinder of MSC Mediterranean Shipping Company S.A. ("MSC S.A.") is improper. Its sole contention is that consideration of the Motion for Leave to Amend ("Motion") is "premature" because Respondent's pending Motion to Dismiss addresses the original complaint. That argument, if accepted, would produce the very inefficiency Respondent claims to avoid. The Motion should be granted, and Respondent's

pending Motion to Dismiss should be deemed moot as to the superseded original complaint, without prejudice to any properly supported response Respondent may file to the Verified First Amended Complaint ("FAC").

II. Respondent Identifies No Recognized Basis for Denying Leave to Amend

Leave to amend is freely granted absent undue delay, bad faith, dilatory motive, repeated failure to cure deficiencies, undue prejudice to the opposing party, or futility. Respondent's three-page Opposition raises none of these grounds:

- **No futility.** Respondent does not argue that any count in the proposed FAC fails as a matter of law. It does not address the FAC's re-pleaded counts under 46 U.S.C. §§ 41102(c), 41104(a)(14), or 41104(a)(15), nor the carrier-identity allegations concerning MSC S.A. as the contracting carrier under Ocean Carrier Agreement No. 23-031AFR.
- **No prejudice.** Respondent identifies no discovery deadline, hearing date, or scheduling order that would be disrupted by amendment. No such prejudice exists on this record.
- **No bad faith or undue delay.** Respondent does not contend that Complainant delayed unreasonably or acted with any improper motive in seeking amendment.
- **No authority cited.** The Opposition contains no citation to 46 C.F.R. § 502.72, any Commission precedent, or any other legal authority supporting denial. It rests entirely on an unsupported "prematurity" theory.

Respondent's own Opposition confirms that Complainant conferred before filing, stating that Complainant "approached Respondent and requested that Respondent consent" to the amendment. Opposition at 1. This forecloses any suggestion that the Motion was procedurally deficient for lack of conferral.

Notably, Respondent does not argue that the addition of MSC S.A. as a Respondent is improper. Respondent's objection is that the proposed FAC does more than add a party — it does not contend that adding MSC S.A. itself is objectionable.

III. Granting Leave Now Reduces, Rather Than Increases, Motions Practice

Respondent's central argument inverts the efficiency rationale it invokes. Respondent asks the Presiding Officer to rule on a Motion to Dismiss directed at a complaint Complainant has already moved to supersede. If that motion is decided first, and leave to amend is later granted, the Presiding Officer and the parties will have expended resources adjudicating a pleading no longer before the Commission —

followed by a second round of motions directed at the FAC. That is the definition of duplicative motions practice.

By contrast, the proposed FAC directly addresses the carrier-identity and pleading-sufficiency issues raised in Respondent's pending Motion to Dismiss by adding MSC S.A. as the alleged contracting carrier and by clarifying the statutory basis for each count. Granting leave now, and deeming the pending Motion to Dismiss moot as to the superseded original complaint, allows the Presiding Officer to resolve any remaining challenge in a single round directed at the operative pleading — preserving Respondent's full right to answer or move against the FAC on any properly supported ground.

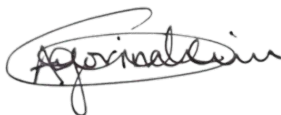
Respondent's own stated concern — that amendment might "remedy alleged defects that are determined not to exist" — is not a basis for denial. If a defect does not exist, curing it works no prejudice on Respondent. If a defect does exist, addressing it through amendment is the precise purpose of the liberal amendment standard.

IV. Requested Relief

For the foregoing reasons, Complainant respectfully requests that the Presiding Officer:

1. **GRANT** Complainant's Motion for Leave to File the Verified First Amended Complaint;
2. **DEEM** Respondent's pending Motion to Dismiss **MOOT** as to the superseded original complaint, without prejudice to Respondent's right to answer or file a properly supported motion directed at the Verified First Amended Complaint; and
3. **GRANT** such other and further relief as the Presiding Officer deems just and proper.

Respectfully submitted,



Kamordeen A. Ganiu

Individually and d/b/a Global Kings Logistics

Complainant, Pro Se

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718-314-8231

Dated: July 28, 2026

¹ Complainant submits this reply to correct the record and address Respondent's Opposition. To the extent the Presiding Officer's rules or scheduling practice require leave to file a further response, Complainant respectfully requests such leave nunc pro tunc, given the narrow and focused nature of this reply and the absence of any prejudice to Respondent from its consideration.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 28th day of July 2026, the foregoing Complainant's Reply to Respondent's Opposition to Motion for Leave to Amend Complaint was served via electronic mail on:

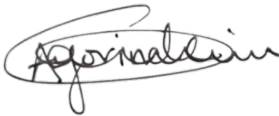
Wayne R. Rohde

Rachel Schwartz

COZEN O'CONNOR

Counsel for Respondent Mediterranean Shipping Company (USA) Inc.

Kamordeen A. Ganiu

A handwritten signature in black ink, appearing to read "Kamordeen A. Ganiu", enclosed within a hand-drawn oval.